

Part III. Council

No. 06

Council Procedure

Code

Cite this instrument as No. 06, Council Procedure.

29 September 2026

Summary

Meet once a month. Post the minutes in 7 days. Within 30 days of taking office, post 3 to 5 goals. Report on those goals every quarter.

A power of council, under Indian Act subsection 2(3), is exercised at a meeting duly convened.

Part 1. Purpose

1.1 This instrument is the council procedure. A decision that spends money, hires, or allocates a benefit exists only if it is a resolution made at a meeting that met these rules.

Part 2. Meetings

2.1 Council must meet at least once in every calendar month. The records officer must post the year's dates by 15 January. If a month has no meeting, the appeal body must post that fact by the 5th day of the next month, and council honoraria stop until the missed meeting is held and the minutes are posted.

2.2 The records officer must give each councillor, and post for members, the agenda and the draft resolutions at least 7 days before a regular meeting.

2.3 An emergency meeting may be called on 24 hours' notice. It may decide only the item written in the notice. The decision dies at the end of the next regular meeting unless that meeting ratifies it. A payment made on a dead decision must be repaid by the person who authorized it, within 30 days.

2.4 Quorum is the quorum in the constitution. If quorum is lost, the meeting stops. A vote taken after that is void.

2.5 The chair may vote once. The chair does not have a second vote. A tie fails.

2.6 A councillor with a conflict under the conduct instrument must leave before the item is called. The minutes must name the person and the item. If the minutes do not, the records officer must correct them within 2 days of being told, or the appeal body must post the omission.

Part 3. The record

3.1 The records officer must post the minutes within 7 days of the meeting and keep them posted for 10 years. Minutes must include the resolution number, the movers, the count, and any recusal.

3.2 A decision made by text, email, or phone is not a resolution. A payment, hiring, or housing allocation made on one is unauthorized. The person who authorized it must repay the sum, or reverse the allocation, within 30 days. The appeal body must post the breach within 7 days of confirming it.

3.3 Members may attend a regular meeting except when the item is solicitor-client advice or a named person's personal information. The closed portion must be listed on the agenda in general words. A decision to spend money must not be made in the closed portion. If it is, it is void.

Part 4. Taking office and leaving it

4.1 Before sitting, the chief and each councillor must read the oath out loud at a meeting and sign it. The records officer must post the signed oath within 2 days. A person who has not signed must not vote. A vote cast before signing is void.

4.2 Within 7 days after a term ends, the outgoing person must deliver records, keys, devices, and passwords to the records officer and sign a list of what was delivered. A person who does not is not eligible for office, a contract, or a program decision until the list is signed. The appeal body must post the omission on day 8.

A court order to get records back is not automatic. Indian Act subsection 81(3) is available if the rule has been made as a by-law and the by-law is contravened. If it is only custom, a lawyer has to frame the claim. Do not assume the police will collect passwords.

Part 5. Public mandate

5.1 Within 30 days of taking office, the chief and each councillor give the records officer a public list of 3 to 5 goals for the term. Each goal says what will be done and the date, or the number that will be met.

5.2 The records officer posts that list within 2 days. If a person misses day 30, that person's honorarium stops on day 31. It starts again when the list is posted.

5.3 Within 30 days after each quarter ends, that person files a public report. The report says what happened on each goal, what was missed, and what they will do next. The records officer posts it within 2 days. If it is late, that person's honorarium stops the next day until it is posted.

5.4 Once a year, within 60 days after the year ends, council holds one public meeting. Every member may come, on reserve or off reserve. The records officer gives 21 days' notice. Members may ask questions. No one screens the questions. The records officer posts a recording or a written record within 7 days. If the meeting is not held, the appeal body calls it, and council honoraria stop until it is held and the record is posted.

5.5 A list or a report that is not posted does not count.

Part 6. Amendment

6.1 Council must not amend this council procedure by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

6.2 The electoral officer posts the full text at least 30 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

6.3 The change passes if a majority of the votes cast are yes and at least 25 percent of the electors vote. A change that would remove a check named in the constitution passes only if a majority of all electors vote yes. If that count is not met, the change is void.

6.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

6.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.